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File No.: EXP202103884

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 08/09/2021. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The grounds for the complaint are that to participate in the "Gomera Paradise Trail" race, personal data associated with vaccines and COVID diagnostic tests are collected.

It provides:

1) Printout of a message to the complainant, from "XXXXXXXXXX", dated 19/08/2021, with the logo of "XXXXXXXXXX", "vaccination certificate or antigen test or PCR". It is stated: "after analyzing the current situation arising from the COVID-19 pandemic, the organization has decided to request participants, as recommended by various public bodies, the following:

- "Certificate of complete vaccination schedule or, failing that, a certificate of having the relevant dose due to having already had COVID-19." (perhaps referring to having had the disease)

- "Alternatively, within 48 hours prior to the event to be held, a negative PCR or antigen test."

"The format to be carried out will be through the website gomeraparadise.com in which the organization will enable a private participant area, through which they will access using the registration ID and the email they provided at the time of formalizing the registration - attached file of the registration confirmation - In their account, they will have a section where they can attach via PDF or JPG said certificate."

SECOND: The General Subdirectorate of Data Inspection verified the following:

a) Printout dated 21/10/2021, from the page gomeraparadise.com/reglamento/, which contains the regulations of the race: "XXXXXXXXXXXXX", highlighting:

- Mountain race organized by "XXXXXXXXXXXXX" to be held on 10 and 11/09/2021.

- According to its modalities, persons from the age of 14 can participate.

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- To participate, among other requirements to be met, they must formalize the registration by completing a form published on the official website. The deadline for this is from 14/05 to 15/08/2021.

- In section 14 of "number collection," which takes place once registered, from 6 to 10/09/2021, it states that "the participant must submit a COVID-19 protocol document in which they commit to having complied with the measures stipulated therein."

b) On 21/10/2021, on the page gomeraparadise.com, it states: "Privacy Policy and Data Protection," indicating that: "B.B.B.", the respondent, as the data controller, "guarantees the protection and confidentiality of any type of personal data provided by our clients, in accordance with the provisions of the GDPR" and that it has a record of activities of personal data processing "in which the data provided by our clients or visitors on the website of the data controller or to its staff will be included, to provide the services requested by users or to resolve the doubts or questions raised by our visitors," that they do not create profiles, the recipients, do not carry out international transfers and the retention period. It informs of:

"Legitimacy of the processing: Why do we need your data?"

1. a) Contractual relationship: This applies when you purchase one of our products or contract one of our services.

b) Legitimate interest: To address the inquiries and complaints you raise and to manage the collection of amounts owed.

c) Your consent: If you are a user of our website, by checking the box in the contact form, you authorize us to send you the necessary communications to respond to the inquiry or request for information made.”

It also informs about the exercise of rights, the office before which they must be exercised, and the way and option to file a complaint with the AEPD.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded on 04/11/2021 to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations and to report on several specific aspects.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 16/11/2021, as stated in the acknowledgment of receipt in the file.

No response was received.

FOURTH: On 08/12/2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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3/9

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD.

1.- On 25/01/2022, a written request for information was sent to the respondent by postal mail, which was delivered on 4/02/2022, as evidenced by the delivery proof from the postal service. Specifically, it concerned:

“1.- The legal basis for the processing and, where applicable, the circumstances that lift the prohibition on processing special categories of data, according to Article 9 of the GDPR.

2.- The purpose of the processing. A copy of the Record of Processing Activities.

3.- The appropriate safeguards implemented to protect the rights and freedoms of individuals.

4.- The categories of data subjects (workers, clients, users, etc.) and the information provided to them regarding the processing of their data. The number of data subjects from whom data has been collected and a description of the data collected.

5.- The Impact Assessment carried out or the reasons why it has not been conducted (to know the list of personal data processing operations that require an impact assessment, as well as any other information related to impact assessments, you can consult the tool “Gestiona EIPD” at ***URL.1.

6.- The decision made regarding this complaint.

7.- A report on the measures taken to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

8.- Any other information deemed relevant.”

After the deadline given without receiving a response to the request, on 29/03/2022, the request for information was reiterated, having received a written response from the respondent dated ***DATE.1, in which the following is stated:

- The event for which the PCR or vaccination certificate is requested is of a private nature, “which is organized by him as a self-employed individual and responsible person for it” and is governed by a regulation that those participating in the race must accept. Its Article 24 indicates that it can be rectified, modified, or improved at any time by the organization.

- “All registrations and all relevant data collected from participants are stored on an online platform for event registrations, which is governed by the following privacy policy, and through which all relevant

information of each and every participant is uploaded, including both the vaccination schedule certificate or test.”

It provides a transcription in copy-paste on the page of “USAGE RULES AND CONDITIONS ACCEPTED WHEN REGISTERING,” “text in force since 18/11/2021,” which contains among others, the following clauses:

1 ACCEPTANCE

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28001 – Madrid

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4/9

1.1. You are registering through the AVAIBOOK SPORTS system, which is a technological solution contracted by the event's registration manager and provided by AVAIBOOK ON-LINE S.L.

1.2. By registering, you expressly accept these General Conditions (GC) in their entirety.

2. CONTRACT

2.1 “By registering for the event through the AVAIBOOK Sports system, the legal relationship that is generated is exclusively between you - hereinafter referred to as the registrant - and the event's registration manager - hereinafter referred to as the MANAGER. AVAIBOOK simply provides the technological tool that allows for the management of registrations for the event, and therefore bears no responsibility for the holding or cancellation of the event, the information provided by the MANAGER regarding it, possible organizational failures, any damage or harm that the registrant or their belongings may suffer during the event or for any other reason not related to its technological solution. (...)

6. PERSONAL DATA PROTECTION

6.1. In accordance with the provisions of Article 33 of Organic Law 3/2018 on Data Protection and the guarantee of digital rights, AVAIBOOK will be considered the "Data Processor" and, therefore, access by AVAIBOOK to the personal data of the REGISTRANTS will not be considered a communication or transfer of data, solely for the purpose of providing the registration service for the event.”

- Given the epidemiological situation arising from the COVID-19 pandemic, “after obtaining authorization from Health for the holding of the event, it was deemed appropriate to request one of the two options explained above, solely for the purpose of ensuring the maximum possible safety of all participants in the event and, in the event of an outbreak of said disease at the event, to have greater control and limitation of possible serious infections, all while providing all information to the competent public authorities.”

- “On 19/08/2021, an email was sent to the participants, through the online registration platform, requesting that this information be uploaded to the online registration platform, which can only be accessed after formalizing the registration and having previously accepted its privacy policy.” The email included the same message text provided by the claimant, missing the literal:

“In your account, you will have a section where you can attach the certificate via PDF or JPG. This option will be available from Monday, August 23, until Sunday, September 5, for the Vaccination Certificate option. In the case of PCR or Antigen tests, you must present it to the Organization at the time of collecting the race numbers.”

- On 24/08/2021, “another email is sent,” literal:

“You now have available in your Private Participant Area the box to upload the vaccination certificate or the relevant Certificate based on COVID-19 (having immunity, having at least one dose, etc.).

Regarding the questions and/or suggestions that have been sent to us concerning said certificate, WE CLARIFY:

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5/9

• At no time have we referred to the obligation, nor is documentation presented or the participant

removed from the event.

- This certificate is requested in order to ensure the maximum guarantees of safety regarding COVID-19. Since we are living in a time of health alert, we believe that the best thing for everyone is to guarantee the highest level of safety and to be supportive.
- We understand that we must all be supportive in order to celebrate events safely and responsibly. Therefore, we appeal to responsibility, solidarity, and common sense to make the XXXXXXXXXX a safe event with guarantees.

“..., the procedure to be followed is as follows:

Access your Private Area: ***URL.2.

- Enter your registration ID (you can find it on your registration receipt).
- Enter the email.
- Upload (in a supportive manner) the vaccination certificate or certificate that guarantees the presence of antibodies, etc.”

“What we have done is contact the online registration platform, specifically with the platform manager, to regulate and learn more about the location and rules regarding the protection of personal data so that the same situation does not occur in the future.”

It concludes by stating: “Regarding the decision made concerning this complaint, as the sender of this complaint is unknown among 1200 participants, we cannot confirm whether a decision was made regarding the complainant.”

2.- On 22/04/2022, the Data Inspection sent a new request for information to the respondent via the Single Electronic Address Service (DEHÚ), which was accepted by the recipient on 25/04/2022. The respondent was required to provide the following information and documentation, without receiving a response, regarding:

“1.- A copy of the data processing agreement signed between the owner of the website “gomeraparadise.com” and AvaiBook On-Line S.L.

2.- The total number of reports on PCR or antigen tests and certificates of complete vaccination collected from the interested parties. Retention period of the same.

3.- The legal basis for the processing of such health-related data and, if applicable, the circumstances that lift the prohibition on processing special categories of data, according to Article 9 of the GDPR.

4.- The purpose of the processing. A copy of the Activity Register of the processing.

5.- The Impact Assessment carried out, or reasons why it has not been carried out (to know the list of personal data processing activities that require an impact assessment, as well as any other information related to impact assessments, you can consult the “Manage EIPD” tool at ***URL.1.”

The request was accepted on 25/04/2022 without receiving a response.

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6/9

SIXTH: On 23/09/2023, the Director of the AEPD agreed:

“TO INITIATE SANCTIONING PROCEDURE against B.B.B., with NIF ***NIF.1, for the alleged infringement of the GDPR, in the following articles:

- 9 of the GDPR, in accordance with Article 83.5.a) of the GDPR and for the purposes of prescription in Article 72.1.e) of the LOPDGDD.

- 13 of the GDPR, in accordance with Article 83.5.b) of the GDPR and for the purposes of prescription in Article 72.1.h) of the LOPDGDD.

- 30 of the GDPR, in accordance with Article 83.4.a) of the GDPR and for the purposes of prescription in Article 73.n) of the LOPDGDD.”

“For the purposes of Article 64.2 b) of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be three administrative fines for the infringement of:

- Article 9 of the GDPR, a fine of 8,000 euros may be imposed.

- Article 13 of the GDPR, a fine of 6,000 euros may be imposed.

- Article 30 of the GDPR, a fine of 1,000 euros may be imposed.”

SEVENTH: No allegations were received against the initiation agreement.

EIGHTH: On 30/05/2023, a resolution proposal was issued indicating:

“That the Director of the Spanish Agency for Data Protection sanctions B.B.B., with NIF ***NIF.1, for

- an infringement of Article 9 of the GDPR, in accordance with Article 83.5.a) of the GDPR, and for the purposes of prescription, classified as very serious in Article 72.1.e) of the LOPDGDD, with 8,000 euros.

- an infringement of Article 13 of the GDPR, in accordance with Article 83.5.b) of the GDPR, and for the purposes of prescription, classified as very serious in Article 72.1.h) of the LOPDGDD, with 6,000 euros.

- an infringement of Article 30 of the GDPR, in accordance with Article 83.4 a) of the GDPR and for the purposes of prescription, classified as serious in Article 73.n) of the LOPDGDD, with 1,000 euros.”

The notification was sent by postal notification and was notified on 11/06/2023. At the same time, an attempt was made electronically on 02/06/2023, which resulted in “expired,” due to the passage of the 10-day period for access to it.

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7/9

On the last day of the deadline for making allegations, 23/06/2023, a written submission was received from the respondent requesting an extension of the deadline for making allegations, in accordance with the provisions of Article 32 of the LPCAP, which states:

“1. The Administration, unless otherwise provided, may grant ex officio or at the request of the interested parties, an extension of the established deadlines, which shall not exceed half of the same, if circumstances warrant it and do not harm the rights of third parties. The agreement to extend must be notified to the interested parties.

...

3. Both the request of the interested parties and the decision on the extension must occur, in any case, before the expiration of the deadline in question. Under no circumstances may an expired deadline be subject to extension. Agreements on the extension of deadlines or their denial shall not be subject to appeal, without prejudice to the appropriate appeal against the resolution that concludes the procedure.”

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Expiration is one of the modes of termination of administrative procedures that occurs due to the passage of time, with the aim of fulfilling the requirements derived from legal certainty. In accordance with this nature and with the general obligation of the Administration to issue an express resolution in all procedures, according to Article 21 of the LPACAP, “obligation to resolve,” certain deadlines are established, the passage of which, without an express resolution having been issued, determines the expiration of the procedure, with the wording:

“1 The Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their form of initiation.

In cases of prescription, waiver of the right, expiration of the procedure, or withdrawal of the application, as well as the subsequent disappearance of the object of the procedure, the resolution shall consist of the declaration of the circumstance that occurs in each case, indicating the facts produced and the applicable norms.

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8/9

The obligation referred to in the first paragraph does not apply to cases of termination of the procedure by agreement or convention, as well as to procedures relating to the exercise of rights subject solely to the duty of responsible declaration or communication to the Administration.

2. The maximum period within which the express resolution must be notified shall be that established by the regulatory norm of the corresponding procedure.

This period may not exceed six months unless a law establishes a longer one or it is provided for in European Union law.”

Article 64 of the LOPDGDD, second paragraph, final, on the form of initiation and duration of the procedure, in force at the date of signing the initiation agreement, prescribes:

“The procedure shall have a maximum duration of nine months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. Upon expiration of this period, it shall expire and, consequently, the proceedings shall be archived.”

This circumstance is noted in the initiation agreement notified to the respondent.

Considering that the request of the complainant for an extension of the deadline is not appropriate, as it occurs on the last day of the same, it is noted, however, that the initiation agreement was issued on 23/09/2022, and given that the last day available to the respondent to make allegations to the proposal was 23/06/2023, the date by which the resolution of the procedure should have been issued and notified, the maximum period provided for by the specific applicable norm has elapsed, therefore it is appropriate to declare such expiration.

III

Regarding the effects, Article 95 of the LPACAP states:

“3. Expiration shall not by itself produce the prescription of actions by the individual or the Administration, but expired procedures shall not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had expiration not occurred may be incorporated into it. In any case, the new procedure must complete the procedures for allegations, proposal of evidence, and hearing of the interested party.”

In this specific case, it was a few days after the registration period for the race closed, on 19/08/2021, when the respondent sent an email to the participants, indicating: “after analyzing the current situation arising from the COVID-19 pandemic, the organization has decided to request from the participants, as recommended by various public bodies, the following:

-Certificate of complete vaccination or, failing that, a certificate of having the relevant dose due to having already contracted COVID-19.

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9/9

- In the absence thereof, with a limit of 48 hours prior to the celebration of the event to be held, a negative PCR or antigen test result.” It is added that the aforementioned documentation must be uploaded on the website gomeraparadise.com, responsibility of the respondent, where a “private

participant area" is enabled,

[https://inscripciones.gomesporteventos.com/inscripcion/ix-gomera-paradise/zona_privada/logeo/](https://inscripciones.gomesporteventos.com/inscripcion/ix-gomera-paradise/zona_privada/loggeo/), enter your registration ID (on the registration receipt and the email with which you registered). This option will be available from Monday, 23/08 until Sunday, 5/09/2021, for the vaccination certificate option. According to the respondent, they requested the data of the vaccination certificates, PCR tests, or antigen tests, due to the epidemiological situation arising from the COVID-19 pandemic in order to ensure the safety of the participants, considering it appropriate, given the situation. They state that "they obtained authorization from Health for the celebration of the event," without providing any document to support this claim. In the email dated 19/08/2021, it was indicated that "the organization has decided to request participants, as recommended by various public bodies, the following," referring to the vaccination certificate, proof of having previously contracted the disease, or a PCR or antigen test 48 hours before the event. Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE for expiration the sanctioning procedure EXP202103884, actions PS/00291/2022, for the violations of articles 9, 13, and 30 of the GDPR attributed to B.B.B. with NIF ***NIF.1

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: Against this resolution, which concludes the administrative process in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and in section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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